

Sangram Maurya v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 January 2020 · Writ - C No. 502 of 2020 · Writ - C No. 502 of 2020 ·
Writ disposed of; relegated to CGRF under clause 7.10.

HEADNOTE

A Division Bench declined to entertain a writ seeking certiorari against an Executive Engineer's electricity-dues recovery, holding the petition not maintainable because a statutory complaint lay before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. The consumer was given two weeks to approach the Forum; the Forum was to decide by a speaking order within four weeks after hearing; coercive recovery was stayed for six weeks or until the Forum decided, whichever earlier, the stay lapsing if the Forum was not approached in time.

FACTUAL SUMMARY

Sangram Maurya invoked the writ jurisdiction of the Allahabad High Court seeking certiorari to quash an order dated 21 November 2019 of the Executive Engineer, Vidyut Vitarn Khand Tritiya, Azamgarh, and consequential recovery of Rs.7,42,567 as electricity dues on connection ATO/3501/013990. Counsel for the electricity department objected that a complaint before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005 was available. The petitioner's counsel did not rebut that objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF alternate remedy for electricity-dues recovery

HOLDING

A writ challenging an Executive Engineer's order recovering electricity dues is not maintainable when a statutory complaint lies before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. The High Court relegated the consumer to that Forum within two weeks, directed a speaking decision within four weeks after hearing, and stayed coercive recovery for six weeks or until the Forum decided, whichever earlier, the stay ceasing if the Forum was not approached in time. ¶ 3-7

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Writ against EE recovery of electricity dues held not maintainable; consumer relegated to a clause 7.10 CGRF complaint. ¶ 3-4

clause-7.10-forum-ombudsman-route-for-billing-grievances Recovery of Rs.7,42,567 as electricity dues treated as a clause 7.10 Forum grievance, not a certiorari matter. ¶ 3-5

consumer-grievance-redressal-forum-remedy-clause-7.10 CGRF directed to decide a clause 7.10 complaint by speaking order within four weeks if filed within two weeks. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE EXECUTIVE ENGINEER'S ORDER DATED 21.11.2019 AND THE RECOVERY OF RS.7,42,567

Left to the Consumer Grievance Redressal Forum under clause 7.10. ¶ 4-5